

MAY 18, 2026
Dept. 9
Probate Tentative Rulings

4.	26PR0082	MATTER OF BOLSTER FAMILY REVOCABLE TRUST
Petition to Confirm Trust Property		

Petitioner David E. Bolster is trustee of the Bolster Family 1989 Revocable Trust Agreement dated August 11, 1989 (“the Trust”). On August 11, 1989, Eugene Wright Bolster and Arlene Janet Bolster, husband and wife, as settlors (hereinafter “Settlors”) executed a declaration of trust entitled the Bolster Family 1989 Revocable Trust Agreement dated August 11, 1989. On May 30, 2001, the Settlors executed the First Amendment to the Trust.

On August 11, 1989, immediately after execution of the trust instrument, the Settlors executed a General Transfer document, which provided that “the Grantors hereby grant, transfer, assign and convey to the Trustees all of the Grantors' interests in all real property, of whatever nature and wherever situated.” This General Transfer document was recorded in the El Dorado County Recorder’s office on December 31, 1989.

In 1991 and 1992, the Settlors transferred Parcel 1 and Parcel 2 to themselves as Co-Trustees of the Trust. In 1994, the Settlors created a Corporation, and all shares of the Corporation’s capital stock were issued to the Trust. Following the creation of the Corporation, the Settlors transferred Parcel 1 and Parcel 2 from the Trust to the Corporation. At the time of the surviving Settlor’s death in 2013, Parcel 1 and Parcel 2 were both titled in the name of the Corporation, despite the 2010 dissolution of the Corporation.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief. Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms

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of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition. The notice and Petition were mailed on March 30, 2026.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

TENTATIVE RULING #4:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.